

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                  |                                                                                  |                           |                                                                                                                                                                                                                                  |
|----------------------------------------------------------------------------------|----------------------------------------------------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Kelly Guillon                                                   | Team:<br>Squad #17                                                               | CCRB Case #:<br>202303310 | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 04/01/2023 10:56 AM, Saturday, 04/01/2023 11:02 AM | Location of Incident:<br>Howard Avenue and Clove Road, Inside the 120th Precinct | 18 Mo. SOL<br>10/1/2024   | Precinct:<br>120                                                                                                                                                                                                                 |
| Date/Time CV Reported<br>Wed, 04/05/2023 12:19 PM                                | CV Reported At:<br>IAB                                                           | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 04/17/2023 12:59 PM                                                                                                                                                                           |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. PO Anthony Giannattasio | 20273  | 964016 | 120 PCT |
| 2. PO Robert Orlando       | 26505  | 967234 | 120 PCT |
| 3. SGT Michael Simone      | 00710  | 948136 | 120 PCT |

| Witness Officer(s)           | Shield No | Tax No | Cmd Name |
|------------------------------|-----------|--------|----------|
| 1. PO Gregory Carosella      | 21200     | 968996 | 120 PCT  |
| 2. PO Nicholas Karaban       | 11191     | 974234 | 120 PCT  |
| 3. PO Tiffany Reyes          | 14661     | 937365 | 120 PCT  |
| 4. PO Vincent Iovine         | 20346     | 964068 | 120 PCT  |
| 5. PO Mario Avenoso          | 16221     | 957343 | 120 PCT  |
| 6. PO Raymond Rodriguez      | 28037     | 946181 | 120 PCT  |
| 7. PO Daniel Filak           | 22972     | 950410 | 120 PCT  |
| 8. PO Jose Alicea            | 00115     | 944315 | 121 PCT  |
| 9. PO Auron Capa             | 13111     | 965966 | 120 PCT  |
| 10. PO Richard Gioia         | 06099     | 932712 | 120 PCT  |
| 11. SGT Christopher Vega     | 03743     | 951378 | 120 PCT  |
| 12. PO Joseph Everett        | 21810     | 959621 | 120 PCT  |
| 13. PO Christine Christensen | 00192     | 949160 | 120 PCT  |
| 14. DTS Daniel Rackow        | 04001     | 935552 | OPS UNIT |

| Officer(s)                  | Allegation                                                                                                                            | Investigator Recommendation |
|-----------------------------|---------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . PO Robert Orlando       | Discourtesy: At Howard Avenue and Clove Road in Staten Island, Police Officer Robert Orlando spoke discourteously to § 87(2)(b)       | A . Within NYPD Guidelines  |
| B . PO Anthony Giannattasio | Force: At Howard Avenue and Clove Road in Staten Island, Police Officer Anthony Giannattasio pointed his gun at § 87(2)(b)            | B . Unable to Determine     |
| C . PO Anthony Giannattasio | Discourtesy: At Howard Avenue and Clove Road in Staten Island, Police Officer Anthony Giannattasio spoke discourteously to § 87(2)(b) | C . Within NYPD Guidelines  |
| D . SGT Michael Simone      | Abuse: Inside the 120th Precinct stationhouse in Staten Island, Sergeant Michael Simone detained § 87(2)(b)                           | D . Within NYPD Guidelines  |

## Case Summary

On April 5, 2023, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) via telephone. IAB then referred the case to the CCRB, and it was received on April 17, 2023.

On April 1, 2023, at approximately 10:56 AM, § 87(2)(b)'s vehicle was stopped by Police Officers Robert Orlando and Gregory Carosella of the 120<sup>th</sup> Precinct for her failure to signal at an intersection at Howard Avenue and Clove Road in Staten Island. PO Orlando then told § 87(2)(b) to "open the fucking door" and removed § 87(2)(b) from the vehicle (**Allegation A: Discourtesy, Within NYPD Guidelines**). § 87(2)(b), § 87(2)(b)'s husband, was in the front passenger seat when Police Officer Anthony Giannattasio of the 120<sup>th</sup> Precinct pointed his gun at § 87(2)(b) and told him, "Open the fucking door" (**Allegation B: Force, Unable to Determine and Allegation C: Discourtesy, Within NYPD Guidelines**). PO Giannattasio then removed § 87(2)(b) from the vehicle and placed him in handcuffs. Initially § 87(2)(b) and § 87(2)(b) were both arrested and taken to the 120<sup>th</sup> Precinct stationhouse, under Sergeant Michael Simone of the 120<sup>th</sup> Precinct's orders; however, § 87(2)(b)'s arrest was later voided, and he was free to leave (**Allegation D: Abuse of Authority, Within NYPD Guidelines**).

As per arrest report § 87(2)(b), § 87(2)(b) was arrested § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)'s voided arrest report § 87(2)(b) listed at least one charge § 87(2)(a) 160.50

§ 87(2)(b)

The investigation received 30 body-worn camera (BWC) videos related to the incident (**BR 02**).

## Findings and Recommendations

**Allegation (A) Discourtesy: At Howard Avenue and Clove Road in Staten Island, Police Officer Robert Orlando spoke discourteously to § 87(2)(b)**

**Allegation (D) Abuse of Authority: Inside the 120th Precinct stationhouse in Staten Island, Sergeant Michael Simone detained § 87(2)(b)**

At runtime 00:00 of PO Carosella's BWC footage (**BR 03**) the first minute of which has no audio, PO Carosella is seated within his police vehicle in the front passenger seat and PO Orlando is seated in the driver's seat. At runtime 00:45, PO Carosella appears to activate the police vehicle's emergency lights and/or siren with his left hand. At runtime 01:00, PO Carosella activates his BWC as the sounds of the police vehicle's siren could be heard. As officers begin to step out of the vehicle, PO Carosella tells PO Orlando, "It's § 87(2)(b)'s vehicle's] going," as officers secure themselves back in the vehicle. § 87(2)(b)'s vehicle is not depicted. At runtime 01:15, PO Carosella states over the vehicle's loudspeaker, "Pull over." For approximately four minutes, the officers pursue § 87(2)(b)'s vehicle as PO Carosella repeatedly tells § 87(2)(b) to "pull over" using the loudspeaker. At no point during the pursuit is § 87(2)(b)'s vehicle depicted. At runtime 03:43, the police vehicle comes to a full stop as PO Carosella opens his car door. Initially he attempts to exit the vehicle before immediately going back inside and closing the door. At runtime 03:47, PO Orlando begins driving once again as PO Carosella says, "I knew she was going to do that." At runtime 03:53, PO Carosella appears to reactivate his vehicle's sirens. During this section of the incident, PO Carosella's BWC does not capture § 87(2)(b)'s vehicle, and it is unclear why the

officers brought their vehicle to a full stop. For approximately one minute, the officers continue to pursue § 87(2)(b)'s vehicle. At runtime 05:12, PO Carosella exits the police vehicle after § 87(2)(b)'s vehicle, a black SUV, finally stops. At runtime 05:16, PO Orlando reaches the driver's window of § 87(2)(b)'s vehicle which is sealed shut as he repeatedly tells § 87(2)(b) "Get out of the car." At runtime 05:22, PO Orlando uses his baton to strike the driver's window multiple times. While hitting the window, PO Orlando orders § 87(2)(b) to, "Get out of the car," multiple times. PO Orlando then tells § 87(2)(b) "Put the car in park right now," multiple times. At runtime 05:33, PO Orlando again strikes the driver's window with his baton. At runtime 05:40, PO Orlando tells § 87(2)(b) "Put the car in park right now. Open the fucking door." PO Orlando then continues to hit his baton against the driver's window as Police Officer Vicent Iovine of the 120<sup>th</sup> Precinct uses his baton to strike the sealed driver's side rear window. No apparent damage is done to the windows by any of the officers' baton strikes. At runtime 05:45, § 87(2)(b) lowers the driver's window as PO Orlando appears to place his left arm past the window and unlock the driver's door. At runtime 05:49, PO Orlando opens the driver's door as he removes § 87(2)(b)'s seat belt. As PO Orlando is removing § 87(2)(b)'s seatbelt, he tells her multiple times to get out before stating, "Get the fuck out." PO Orlando then pulls § 87(2)(b) out of the vehicle by grabbing her left arm with both of his arms. § 87(2)(b) stands as PO Orlando places the front of her torso against the side of her vehicle. PO Orlando orders § 87(2)(b) to place her hands behind her back and at runtime 05:58, she is handcuffed by PO Carosella.

At runtime 01:00 of SGT Simone's BWC footage (**BR 16**), he arrives at the incident location. Both § 87(2)(b) and § 87(2)(b) have already been removed from her vehicle and placed in handcuffs. § 87(2)(b) a tall black male wearing a blue colored hoodie, is located to the right side of § 87(2)(b)'s vehicle surrounded by a group of officers from the 120<sup>th</sup> Precinct. At runtime 01:30, SGT Simone asks if the group of officers have a vehicle that could transport § 87(2)(b) to the stationhouse. At runtime 01:48, Police Officer Tiffany Reyes of the 120<sup>th</sup> Precinct asks if they should take § 87(2)(b) to the stationhouse and SGT Simone replies "Yeah, that's fine." At runtime 02:12, PO Carosella tells the sergeant, "The LPR [license plate reader] came up right away." At runtime 02:24, SGT Simone approaches PO Carosella and the officer gives his department phone to SGT Simone. The front screen of the phone is captured on the sergeant's BWC; however, due to glare and the camera angle, the screen is not legible or otherwise clearly depicted. While SGT Simone looks at the officer's phone, PO Carosella tells him that § 87(2)(b)'s vehicle shows up as having stolen out-of-state license plates. SGT Simone questions if the officers searched the vehicle's VIN number and the officer replies, "Not yet". At runtime 02:34, SGT Simone tells PO Carosella, "I guess bring them back, we'll figure it out back at the house."

§ 87(2)(b)'s arrest report § 87(2)(b) (**BR 01**), prepared by PO Carosella, notes that § 87(2)(b)'s vehicle was initially stopped by officers at Bay Street and Canal Street in Staten Island for her failure to signal at the intersection. The officers attempted to stop § 87(2)(b) with their emergency lights and the siren; however, § 87(2)(b) did not stop or yield for police officers. During the vehicle pursuit § 87(2)(b) did drive through a steady red traffic light and failed to signal at the intersection of Hillside Avenue and Howard Avenue in Staten Island. The vehicle was then stopped at Howard Avenue and Clove Road in Staten Island and § 87(2)(b) was arrested.

§ 87(2)(b)'s statement (**BR 04**) is generally consistent with the footage collected with the following additions and exceptions. He was in the front passenger seat of § 87(2)(b)'s vehicle when he noticed that a marked police vehicle began following them. The vehicle followed behind them for approximately 10 to 20 minutes and during this time they did not turn on their emergency lights or use their sirens. Once the vehicle reached the intersection of Howard Avenue and Clove Road, the police vehicle sounded their sirens, however he denied officers ever speaking over the loudspeaker. § 87(2)(b) believed the police vehicle sounded their siren because they wished for

§ 87(2)(b) to pull over; however, he did not understand why the officers were stopping the vehicle. § 87(2)(b) denied § 87(2)(b) committed any vehicle and traffic law (VTL) violations prior to the police vehicle activating their emergency lights. § 87(2)(b) continued to drive as she reached the intersection of Hillside Avenue and Clove Road where § 87(2)(b) saw another police vehicle parked diagonally as it blocked both lanes of the two-way road. § 87(2)(b) then stopped her vehicle at the intersection and officers began approaching § 87(2)(b) from the driver's side. An officer from the driver's window then told § 87(2)(b) "Open the fucking door" repeatedly. The officers then opened the driver's door from their side and pulled § 87(2)(b) out of the vehicle and handcuffed her. § 87(2)(b) was also removed from the vehicle, and both of them were arrested and transported to the 120<sup>th</sup> Precinct stationhouse. Approximately three hours after being lodged within the stationhouse he was visited by an unknown sergeant who informed him that he was not charged with anything and was free to leave.

PO Carosella's statement (**BR 17**) is generally consistent with the footage collected with the following additions and exceptions. Prior to the vehicle stop, PO Carosella and PO Orlando had their vehicle parked at the intersection of Canal Street and Bay Street with License Plate Readers (LPRs) affixed to the rear of their vehicle. § 87(2)(b)'s vehicle then passed the officer's vehicle and turned right onto Bay Street without using a turn signal. The LPR automatically scanned § 87(2)(b)'s license plate and indicated to the officer via the police vehicle's monitor on their central console that the license plate was for a wanted stolen vehicle. No pedigree information was provided to the officers regarding the owner of the vehicle. The officers then pursued § 87(2)(b) as they turned right onto Bay Street with their emergency lights and siren activated. PO Carosella pursued § 87(2)(b)'s vehicle for approximately seven to ten minutes and he witnessed § 87(2)(b) commit multiple vehicle traffic law violations including passing red traffic lights, driving into oncoming traffic, and not stopping for officers. The decision to arrest § 87(2)(b) and § 87(2)(b) for possession of stolen property was made by the supervisor on the scene, SGT Simone. At the stationhouse, PO Carosella was able to contact the department that made the notification for § 87(2)(b)'s vehicle being stolen, a New Jersey Police Department that he was unable to specify, and learned that they had accidentally neglected to remove the notification and clarified that the vehicle was not stolen. Thus, § 87(2)(b)'s arrest was voided, and he was allowed to leave with no charges against him.

SGT Simone's statement (**BR 18**) is generally consistent with the footage collected with the following additions and exceptions. SGT Simone explained that § 87(2)(b) was arrested under the suspicion that § 87(2)(b)'s vehicle was stolen. He believed that § 87(2)(b)'s vehicle was stolen because of PO Carosella's LPR results and the dangerous conduct § 87(2)(b) engaged in when made to stop her vehicle. § 87(2)(b) was arrested for possession of stolen property as a passenger because he was within the vehicle when the officers suspected it of being stolen and given this, he may have played a part in the original theft. SGT Simone was the only officer to make the decision to arrest § 87(2)(b). At the time of § 87(2)(b)'s arrest, the officers did not know who the owner of the vehicle was. The officers did not take any investigative actions to verify the identities of their arrestees or the vehicle's owner prior to transporting them to the stationhouse because of their general incomppliance with officers and SGT Simone wished to resolve the matter at the stationhouse to ensure the safety of everyone involved.

Event Number § 87(2)(b) (**BR 19**) reports that at 10:47 AM on the date of the incident, police officers had engaged in a vehicle pursuit against § 87(2)(b)'s vehicle. At 10:50 AM, approximately one minute before § 87(2)(b)'s vehicle was finally stopped by officers, it was reported that § 87(2)(b)'s vehicle was "stolen".

The 120<sup>th</sup> Precinct's command log (**BR 11**) for the date of the incident notes that at 11:15 AM, § 87(2)(b) was arrested and charged § 87(2)(a) 160.50

Administrative Guide 304-06 (BR 20) states that officers are prohibited from making discourteous remarks to civilians.

PD v. Pichardo, DCT Case Number 2015-15012 (BR 05) states that, while officers are generally prohibited from using profanities toward civilians, they may use profanities "in the context of dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian.

BWC footage captures § 87(2)(b) evading officers' attempts to stop her vehicle for approximately five minutes, and then further non-compliance with PO Orlando's repeated commands to both open her driver's door and park her vehicle once stopped. Only after repeated non-compliance by § 87(2)(b) did PO Orlando command her to "open the fucking door," at which point she rolled down her window and was successfully removed out of the vehicle. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **within NYPD guidelines**.

New York Penal Law § 165.45 (BR 21) states that a person is guilty of criminal possession of stolen property when they knowingly possess stolen property with the intent to benefit themselves or a person other than the owner of said property.

In Alvarez v City of New York 2014 N.Y. Misc. (BR 22), officers conducted a vehicle stop after their vehicle's LPR indicated that the defendants were occupying a suspected stolen vehicle. Given that both the driver and the passenger were unable to provide proof to the officers of their ownership of the vehicle, the court found that the officers had "probable cause" to arrest both the driver and the passenger of the allegedly stolen vehicle.

In People v. Robinson, 282 A.D.2d 75 (BR 23) the court held that the scope of a reasonable investigatory detention will vary to some extent depending on the particular facts and circumstances of each case. However, the detention must be temporary and last no longer than is necessary to effectuate the purpose of the stop.

§ 87(2)(b) was arrested and detained within the 120<sup>th</sup> Precinct stationhouse regarding the incident and the command log shows that § 87(2)(b) was at least initially charged § 87(2)(a) 160.50

In SGT Simone's statement he explained that he was the officer who made the decision to arrest § 87(2)(b) given the information he was provided with by officers that § 87(2)(b)'s vehicle was stolen. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines**.

**Allegation (B) Force: At Howard Avenue and Clove Road in Staten Island, Police Officer Anthony Giannattasio pointed his gun at § 87(2)(b)**

**Allegation (C) Discourtesy: At Howard Avenue and Clove Road in Staten Island, Police Officer Anthony Giannattasio spoke discourteously to § 87(2)(b)**

At runtime 01:00 of Police Officer Nicholas Karaban of the 120<sup>th</sup> Precinct's BWC footage (**BR 06**), the officer activates his BWC as he arrives at Howard Avenue and Clove Road in Staten Island and approaches § 87(2)(b)'s vehicle's front passenger door. At runtime 01:10, PO Karaban pulls on the car door handle, and it does not open. PO Giannattasio then approaches the front passenger door as he also attempts to open the door by pulling on the handle. He then slams his right hand onto the window which causes the officer's BWC device to fall off his uniform and onto the ground. At runtime 01:18, PO Karaban gives PO Giannattasio his baton and the officer gives PO Karaban his detached BWC device. PO Giannattasio then begins hitting the baton against the window. At runtime 01:25, § 87(2)(b) rolls down the front passenger window as PO Giannattasio tells him, "Open the fucking car." At runtime 01:28, PO Giannattasio then unholsters his gun and points it at § 87(2)(b). As he points the gun at § 87(2)(b) he tells him, "Open the fucking car. Open the door right fucking now. You understand me?" § 87(2)(b)'s behavior within the vehicle is not visible. At runtime 01:33, § 87(2)(b) opens the car door as PO Giannattasio holsters his gun. At runtime 01:38, PO Giannattasio gives PO Karaban his baton back as he assists § 87(2)(b) in removing his seatbelt as the officer guides him out of the vehicle via his right arm. Once § 87(2)(b) is fully out of the vehicle, PO Giannattasio tells him, "Put your hands behind your back." At runtime 01:44, with the assistance of PO Karaban, PO Giannattasio places § 87(2)(b)'s torso against § 87(2)(b)'s vehicle. As PO Giannattasio attempts to place both of § 87(2)(b)'s arms behind his back, he tells him, "Don't you fucking break from me, give me your fucking hands." It is unclear what actions were done by § 87(2)(b) to elicit this response from the officer as PO Karaban's and PO Giannattasio's persons obscure a majority of his BWC's lens; however, PO Giannattasio appears to struggle to place § 87(2)(b)'s arms behind his back. At runtime 01:48, PO Karaban places § 87(2)(b) in handcuffs. At runtime 02:00, § 87(2)(b) is fully rear handcuffed.

At no point in the other available BWC footage are § 87(2)(b)'s actions within the vehicle captured (**BR 02**).

§ 87(2)(b)'s statement (**BR 04**) is generally consistent with the footage collected with the following additions and exceptions as he explained that while within § 87(2)(b)'s vehicle PO Giannattasio was hitting the passenger window with his baton and commanded him to open the car door. , § 87(2)(b) replied, "no", "go fuck yourself" and "kiss my ass". § 87(2)(b) then looked away from the officer as he looked towards the driver's side to observe § 87(2)(b). Upon turning his head back to PO Giannattasio, the officer had pointed his firearm toward § 87(2)(b)'s face or his chest and told him, "Open the fucking door and get your ass fucking out here." Outside of turning his head, § 87(2)(b) denied making any physical movements prior to the officer pointing his firearm at him. § 87(2)(b) then complied with the officers and opened his door as PO Giannattasio pulled him out and handcuffed him.

PO Giannattasio's statement (**BR 07**) is generally consistent with the footage collected with the following additions and exceptions. Prior to arriving at the scene, he received a radio run regarding a potential stolen vehicle that had been evading officers and was requested as back-up. Upon

arriving at the incident location, PO Giannattasio approached the front passenger side of § 87(2)(b)'s vehicle and unsuccessfully attempted to open the door. At this time, § 87(2)(b) ignored the officer as he looked away from him and made no attempts to unlock the car door. Upon § 87(2)(b) rolling down his window, PO Giannattasio saw him reaching downward with his left arm as if he was trying to collect something that was either located on the floor matting or underneath the passenger seat. PO Giannattasio was only able to see § 87(2)(b)'s head and his shoulders and could not see the area where § 87(2)(b) was reaching. At this moment, PO Giannattasio believed that § 87(2)(b) might have been reaching for a weapon and took out his gun and pointed it towards § 87(2)(b). PO Giannattasio feared for his safety because he did not know why § 87(2)(b) was reaching towards the ground and believed at the time he could have attacked him with either a knife or firearm given that the window was fully rolled down. PO Giannattasio used profanity while communicating with § 87(2)(b) because he wanted to gain § 87(2)(b)'s compliance. At this time, "tensions were high" and the officer wished for § 87(2)(b) to "comply with [officers'] orders without resorting to physical force." PO Giannattasio explained that unlike pedestrian stops, vehicle stops were much more dangerous given the limited visibility officers have and that in this vehicle stop the occupants had evaded officers for approximately five minutes which increased the officer's suspicion that there might be illegal items within the vehicle such as weapons. § 87(2)(b) then complied with the officers and exited the vehicle. PO Giannattasio holstered his firearm once § 87(2)(b) opened the car door because he no longer saw him as a threat as he was complying with the officer's commands. PO Giannattasio used the word "fuck" while handcuffing § 87(2)(b) because he was tensing his arms and that made it difficult for officers to handcuff him. PO Giannattasio used profanity to gain compliance from § 87(2)(b) and at no point did he use the word "fuck" to belittle or disrespect § 87(2)(b).

Patrol Guide Procedure 221-01 (BR 10) states that, "The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable."

Administrative Guide 304-06 (BR 20) states that officers are prohibited from making discourteous remarks to civilians.

PD v. Pichardo, DCT Case Number 2015-15012 (BR 05) states that, while officers are generally prohibited from using profanities toward civilians, they may use profanities "in the context of dynamic situation over which [they are] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian.

It is undisputed that PO Giannattasio pointed his gun at § 87(2)(b) while instructing him to exit the vehicle. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation B** be closed as **unable to determine**.

§ 87(2)(g)

§ 87(2)(g) it is undisputed that prior to the officer using profanity, § 87(2)(b) was uncooperative as he turned his head away from the officer and kept his door locked. § 87(2)(g)

it is recommended that **Allegation C** be closed as **within NYPD guidelines**.

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**BR 12**).
- PO Orlando has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Giannattasio has been a member of service for six years and has been a subject in one other CCRB complaint and one other allegation, none of which were substantiated. § 87(2)(g)
- SGT Simone has been a member of service for 15 years and has been a subject in four other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g)

### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim search request was submitted to the NYC Comptroller's Office on May 1, 2024. The result will be attached to this case upon receipt (**BR 15**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

### RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.



---

Squad No.: 17

|               |                      |                                   |                     |
|---------------|----------------------|-----------------------------------|---------------------|
| Investigator: | <u>Kelly Guillon</u> | <u>Investigator Kelly Guillon</u> | <u>May 20, 2024</u> |
|               | Signature            | Print Title & Name                | Date                |

|               |                         |                             |                   |
|---------------|-------------------------|-----------------------------|-------------------|
| Squad Leader: | <u>Benjamin Shelton</u> | <u>AIM Benjamin Shelton</u> | <u>05/21/2024</u> |
|               | Signature               | Print Title & Name          | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |